

State/County Agreement
Installation and Operation of Automated License
Plate Reader on State Highway

This Agreement is between the State of Nebraska, Department of Transportation (State), and the County of Lancaster, Nebraska (County). The Agreement is also being signed by the Lancaster County Sheriff's Office (Police Department) to confirm the Police Department's understanding of its Statutory and Contractual obligations under this Agreement. The parties to this Agreement may be collectively referred to as the Parties.

Preliminary Statements

Whereas, the Police Department is the local law enforcement agency of the County, and for purposes of this Agreement, the County and its Police Department will be referred to as "County", and

Whereas, under the Automatic License Plate Reader Privacy Act (the "Act") (Neb. Rev. Stat. §§ 60-3201 to 60-3209), County is allowed to install, operate, and maintain an automatic license plate reader system ("ALPR System") so long as it is operated for the purposes allowed and as provided in the Act.

Whereas, County is currently planning to install, operate and maintain an ALPR System on or along the State Highway at or near the location specified below in this Agreement, and

Whereas, part of an ALPR System could potentially be installed on part of the State highway right-of-way, outside the traveled portion of the public property, and for this Agreement, the area of the State highway located outside of the traveled way will be referred to herein as the "State Highway."

Whereas, County has requested permission from State to install, operate and maintain part or all of County's ALPR System on the State Highway, and

Whereas, State is willing to allow County to install, operate and maintain some or all of its ALPR System on the State Highway so long as it is accomplished at no cost, obligation, or liability for the State, in accordance with the terms of the Act, and consistent with this Agreement, and

Whereas, the County Board authorizes its Chairperson to sign this Agreement, as evidenced by the Resolution of the County Board dated the 10 **day of October, 2023**, attached as Attachment A and made a part of this Agreement.

NOW THEREFORE, in consideration of these facts and the mutual consideration of the Parties, the Parties agree as follows:

Section 1. Purpose of the Agreement. The purpose of this Agreement is to authorize and provide the conditions for County to use and occupy the State Highway for the installation, operation, and maintenance of an ALPR System.

Section 2. Definition of "County's ALPR System". County's ALPR System includes but is not limited to all ALPR related equipment and materials installed by County on the highway including, but not limited to, ALPR devices, cameras, transmitters, receivers, antennas, power cables and equipment,

communication cables and equipment, attachment or connection devices, and other components, materials or equipment related to the ALPR System Project.

Section 3. Description of the Project. County proposes to install, operate, and maintain County's ALPR System at the locations listed on Attachment B to this Agreement, not to exceed ten (10) total proposed locations.

Section 4. Duration of the Agreement. This Agreement will be effective beginning on the date it is signed by both Parties and will end on December 31st of the fifth year after the date when the Agreement was effective. Upon written requests by County, and upon written approvals by State, this Agreement may be renewed for up to two additional five-year terms.

Section 5. County's Duties. County agrees to the following terms, conditions, and obligations for County's ALPR System project in exchange for obtaining a limited right to use and occupy the State Highway at no charge:

5.1 Costs, obligations, and liability. County will be solely responsible for all costs, obligations, and liability arising out of (a) County's ALPR System, and (b) County's use and occupation of the State Highway. County shall notify its insurance carrier, or its official risk management entity, of County's obligations under this Agreement and County will ensure that it meets its obligations to be fully responsible for its use and occupancy of the State Highway as provided under this Agreement.

5.2 ALPR System Location Selection Process. In Attachment B, County has identified proposed locations for installation of County's ALPR System. County and State will work together in good faith to attempt to identify a location or locations acceptable to State for the placement of the ALPRs.

5.3 Compliance with the Act. County will be solely responsible for complying with all applicable terms of the Automatic License Plate Reader Privacy Act and any other State or Federal law related to County's use or occupancy of the State Highway and the operation of the ALPR System.

5.4 Obtain a Permit from State. Before taking possession of the State Highway for the installation of County's ALPR System, County must apply for and obtain a permit to use or occupy the State Highway from the State's local District Office using the State's standard permitting process.

5.5 ALPR Design, Structural Review, Environmental Review, Purchase, Installation, and Traffic Control. County will be solely responsible for the design and installation of County's ALPR System. If County's design includes attachment of any ALPR components to any State personal property or an attachment to the real estate, County must submit to State the opinion of a licensed structural engineer that the personal property or attachment has sufficient structural strength for installation of such device and shall obtain permission from State to use each such State item of personal property or attachment. County will be responsible for any environmental review or necessary permitting required for County's ALPR System Project. County will be responsible for any traffic control related to the installation, operation, repair, and maintenance of the ALPR System, and such Traffic Control shall conform with the Manual

on Uniform Traffic Control Devices and all State's typical requirements for traffic control for projects or operations of this type. State encourages County to place ALPR System attachments outside of the clear zone designated for the respective State Highway on which it will be installed. However, placement of ALPR System attachments within the clear zone, while meeting all other requirements of this Section, is not considered negligence by County.

5.6 Notice to State of Start of Work on the State Highway. County shall give State's District Engineer two weeks written notice of the date County or County's representatives will first use or occupy the State Highway as a part of County's project to install County's ALPR System. County will notify State's District Engineer anytime post-installation work, other than routine inspection or simple repair, will be completed on the State Highway. County will notify State when County's installation, repair or maintenance projects are completed.

5.7 Ownership, Inspection, Operations, Maintenance, and Data. County will own the ALPR System and will also be solely responsible for all post installation duties related to County's ALPR System including but not limited to the inspection, operation, repair, restoration, replacement, maintenance, and control of data.

5.8 Damage to ALPR Property. County will be responsible for any work to repair or replace damage to the ALPR system caused by highway traffic, pedestrians, or others, including damage caused by vandalism or acts of nature. County may take collection actions against any wrongdoer who has damaged County's ALPR System. County agrees to coordinate its collections efforts with State whenever County knows that the State Highway real or personal property was also damaged by the same person or during the same incident.

5.9 Protection of State Highway. County agrees to protect the State Highway real or personal property from damage or destruction arising out or related in any way to County's use or occupancy of the State Highway under this Agreement. When damage or destruction of highway property occurs related to the ALPR System or County's use or occupancy of the State Highway, County shall promptly replace, repair, or restore the State Highway to its pre-existing condition, clean and neat, and safe for public use, in a manner and to a condition acceptable to State. The State Highway includes all real and personal property and includes fixtures and appurtenances, including, but not limited to, highway pavements, paved or unpaved shoulders, turf or other ground cover, vegetation including trees and bushes, curbs, curb ramps, sidewalks, retaining walls, bricks, pavers, surfacing, bridges, drainage culverts, storm sewers, traffic signs and signals, highway lighting and any other structures and attachments of any kind on the State Highway.

5.10 Duty to Notify State. County agrees to notify State when County becomes aware of any condition, issue or concern on the State Highway that was caused or developed in any way related to County's use or occupation of the State Highway under this Agreement.

5.11 Interference with State's Highway Devices. County will be responsible for assuring that the installation or use of County's ALPR System will not interfere in a significant way with the signals or operation of any State electronic devices located on or in proximity to the State Highway. County agrees to work with State in good faith to resolve any electronic interference issues related to County's ALPR System.

5.12 Removal of County's ALPR System at end of Agreement. County will be responsible for the removal of any part of County's ALPR System from the State Highway within one month after termination or ending of this Agreement, except State may require faster removal when justified for the safety of highway users or for highway projects. County will restore the State Highway to a clean, neat, and safe condition, essentially to the same condition as it was prior to the installation of County's ALPR System.

5.13 State Construction or Maintenance Projects. County agrees to promptly remove at its own cost any part of County's ALPR System found to conflict with any future State project to reconstruct, maintain, or repair the segment of highway where County's ALPR System is located. State will assist County in relocating any component that must be removed to some other location on the State Highway not in conflict with such project. County further agrees to cooperate with State and to temporarily remove County's ALPR System as needed, in good faith, for other State purposes.

5.14 Negligence. Each Party agrees to be responsible for that Party's own negligence or intentional acts, and for the negligence or intentional acts of any employees, contractors, representatives, or any person or entity working with or for that Party's benefit, related to County's ALPR System or the use or occupancy of the State Highway under this Agreement. Further, this Agreement is not intended to shift from County to State any duties or any responsibility, liability or costs arising out of County's ALPR System or County's use or occupation of State Highway under this Agreement.

5.15 Liability for Improper Use of ALPR System. County's ALPR System installation and operation is solely a County project and is not a joint enterprise with State. County agrees to be solely responsible for any claims or liability related to the alleged improper placement or use of the ALPR System or the ALPR System data. County agrees to properly protect all data collected including, but not limited to personally identifiable information. County agrees to defend the State at County's sole cost, in the event a claim of any type is brought against County and/or State related to the installation, operation or maintenance of the ALPR System on the State Highway.

Section 6. State's Limited Responsibility. County and State agree as follows:

6.1 ALPR System Project. State will have no duty, liability, or responsibility with respect to County's ALPR System including but not limited to the design, purchase, installation, operation, repair, or maintenance of County's ALPR System.

6.2 Proposed Locations. State will assist County in good faith to attempt to find a location, or locations, where County's ALPR System may be installed on the State Highway. State reserves the right to deny access to the State Highway if, after a good faith attempt to find a location to install County's ALPR System, a location acceptable to State cannot be found, in State's sole discretion.

6.3 Cooperation. State will cooperate in good faith with County when requested concerning any issues of County related to the use or occupancy of the State Highway with County's ALPR Project. State's cooperation with County will not be found to create a duty of

care on behalf of State to anyone related to County's ALPR System or County's use or occupancy of the State Highway. It is understood that State's representatives will not have any training, expertise or obligation with respect to County's ALPR System or related to County's use or occupancy of the State Highway.

Section 7. Termination. This Agreement will be terminated under the following conditions:

- 7.1 Change of Law.** The Act is changed in a way that will directly or indirectly restrict or prohibit in a significant way the use of the State Highway for the ALPR System as contemplated under this Agreement.
- 7.2 Removal or Discontinuance of Use.** County removes the ALPR System or discontinues use of the State Highway for the operation of an ALPR System for six-months or longer.
- 7.3 Failure to Follow the Terms of the Act.** Breach of the terms of this act, or failure to follow the terms of the Act, after notice from State, and a failure by County to cure the alleged breach within the time allowed in the notice of breach.
- 7.4 By Order of Court.** A court with appropriate jurisdiction finds the installation or operation of the ALPR System is contrary to Nebraska law.

Section 8. Drug Free Workplace. The County shall have an acceptable and current drug-free workplace policy on file with the State.

Section 9. Fair Employment Practices. If County performs any part of the work on this project itself, County shall abide by the provisions of the Nebraska Fair Employment Practices Act as provided by Neb. Rev. Stat. §§ 48-1101 to 48-1126.

Section 10. Disabilities Act. The LPA agrees to comply with the Americans with Disabilities Act of 1990 (P.L. 101-366), as implemented by 28 CFR 35, which is hereby made a part of and included in this agreement by reference.

Section 11. Lawful Presence in USA and Work Eligibility Status Provisions. The County agrees to comply with the requirements of Neb. Rev. Stat. §§ 4-108 to 4-114 with its ALPR System project, including, but not limited to, the requirements of § 4-114(2) to place in any contract it enters into with a public contractor a provision requiring the public contractor to use a federal immigration verification system to determine the work eligibility status of new employees physically performing services within the State of Nebraska.

EXECUTED by the County this 10 day of October, 2023.

ATTEST:

COUNTY OF LANCASTER

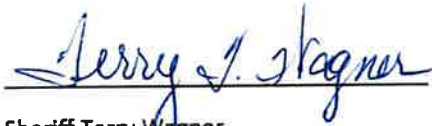


County Clerk



Christa Yoakum, Chairperson of the County Board

I am the Chief Law Enforcement Officer of the County. I understand the terms and conditions of this Agreement and hereby agree to require the Police Department to conform to the Act and to the terms and conditions set out in this Agreement.



Sheriff Terry Wagner

Lancaster County Sheriff's Office

10-11-2023

Date

Executed by the State this 12 day of October, 2023.

STATE OF NEBRASKA, DEPARTMENT OF TRANSPORTATION



Director

RECOMMENDED:

Brandon Varilek 10/13/2023

District Engineer

ATTACHMENT B

Proposed Location:

State Highway # **I-80**

Side of the highway: **see below**

Description of the proposed locations along the State Highway where County requests County's ALPR System be installed, in order of priority, not to exceed ten (10) locations.

- 1) Eastbound at 407.8 mile marker (south side of highway)
- 2) Westbound at 428.4 mile marker (north side of highway)
- 3) _____
- 4) _____
- 5) _____
- 6) _____
- 7) _____
- 8) _____
- 9) _____
- 10) _____

Description of all ALPR Devices, Equipment, and Components Expected to be Installed on the State Highway: _____.

ATTACHMENT A

RESOLUTION R-23-0085

A RESOLUTION AUTHORIZING THE EXECUTION OF AN AGREEMENT WITH THE NEBRASKA

DEPARTMENT OF TRANSPORTATION FOR:

Installation and Operation of Automated License Plate Reader on State Highway

Whereas: The County and State wish to enter into an Agreement for the Installation and Operation of Automated License Plate Readers (ALPRs) on State Highway within the County; and

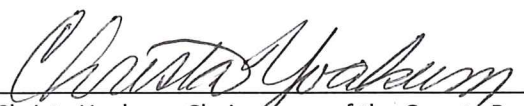
Whereas: This Agreement is intended to set out the various responsibilities and duties of the County and State regarding the installation, operation and maintenance of the ALPRs; and

Whereas: The County understands that it must strictly follow all Federal, State and local laws, rules, regulations, policies and guidelines applicable to the installation, operation and maintenance of ALPRs.

Be it resolved: the following is the official action taken by the County Board of the County of Lancaster, Nebraska:

1. The Chairperson of the County Board is hereby authorized and directed to execute said Agreement on behalf of the County of Lancaster and the County Clerk is authorized to attest said execution.
2. This resolution will be marked Attachment A, and a copy attached to the Agreement.

PASSED AND APPROVED THIS 10 DAY OF October, 2023.


Christa Yoakum, Chairperson of the County Board

ATTEST:


County Clerk